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**Probate Calendar for Tuesday August 18, 2026
9:00 a.m. in Department 4, with Judge Tana L. Coates Presiding**

No.	Case Number	Case Name	Type of Matter	Probate Notes
<u>The following matters are OFF CALENDAR, DISMISSED, DENIED OR CONTINUED:</u>				
11	25PR-0161	In Re: Joe N. Flores Will and Trust dated November 9, 1967	Order to Show Cause re Dismissal Petition Filed 5/13/2025 - to Replace and Appoint Trustee; cont'd 11/04/25 & 1/13/26	DISMISSED LIST. <i>It is recommended the matter be dismissed based on the representation made by counsel at the last hearing on January 13, 2026. If Petitioner wishes to pursue the Petition, they should appear at the hearing. The following is noted as issues that are still outstanding.</i> <i>1. The document attached to the Petition is a will, with a testamentary trust creation incorporated upon death. Was this will ever probated? Was the testamentary Trust created by a Court? The order creating the testamentary trust is needed for review as part of his Petition. This likely should be an Order for Final Distribution. All that presented to this Court at this time is a copy of the Will. If the Testamentary Trust was created in Kings County, it is unclear if this County is the proper venue. See Probate Code section 17300.</i> <i>2. Due to the missing Testamentary Trust, the Court cannot determine if notice has been met. It is noted</i>

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				<i>that everyone named in the Petition as requiring notice has received notice.</i> <i>3. A revised order may be needed.</i>
17	26PR-0028	Estate of: Adam Stolinski	Petition Filed 1/22/26 - Spousal Property Petition	CONTINUED LIST. <i>The Petition is continued to November 24, 2026 at 9:00 am. in D-4. All additional items must be filed by October 27, 2026. The following is noted:</i> <i>1. Item 4 of the proof of service of Notice of Hearing filed February 17, 2026 is incomplete. The signature of the declarant is also not dated. An amended proof of service of Notice of Hearing is needed.</i> <i>2. A copy of a financial statement establishing current title on each account is needed.</i> <i>3. It is noted that a Creditor's Claim has been filed in this matter. Probate Code section 13156 appears to apply against the petitioner personally, without any further order in this particular proceeding. The Court is not making any determinations as to how the Creditor Claims should be paid pursuant to Probate Code section 13156.</i>
22	26PR-0082	Estate of: LARRY RAMIREZ	Petition Filed: 03/16/2026 [DUE 7/21/26] INTESTATE cont'd 5/5/26	CONTINUED LIST. <i>The Petition is continued to February 2, 2027 at 9:00 am. in D-4. All additional items must be filed by January 5, 2027. The following is noted:</i> <i>1. Larry Ramirez, the decedent's father, was not served. It is noted that the Amended Declaration of Diligent Search filed May 4, 2026 indicates that a diligent search occurred to locate Larry Ramirez. Item 2 indicates that no relatives have knowledge of his whereabouts, but Item 3 does not list any relatives that were contacted.</i>

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				2. <i>It is recommended the Court accept the Declaration of Diligent Search for Anthony Alvarez.</i> 3. <i>Item 5a(8) is checked indicating that there is no issue of a predeceased child. The Supplement filed on May 4, 2026 now acknowledges grandson Devin Gelner. However, the Competing Petition identifies two other issue, Catalina Gelner and Daniel Jones as well. Clarification is needed.</i> 4. <i>Petitioner has waived bond as noted in Item 3e(3). Bond cannot be waived if not all beneficiaries have signed waivers. It appears a bond of \$389,900.00 will be needed.</i>
25	26PR-0082	Estate of: LARRY RAMIREZ	Petition Filed: 6/17/2026 Competing - INTESTATE	CONTINUED LIST. <i>The Petition is continued to February 2, 2027 at 9:00 am. in D-4. All additional items must be filed by January 5, 2027. The following is noted:</i> 1. <i>The proof of service of Notice of Petition to Administer Estate filed July 28, 2026 appears to be signed with a computer-generated signature. An original or verified digital signature is needed. (Cal. Rules Ct., rule 2.257.)</i> 2. <i>Item 2d(1) of the Petition is checked. A bond of \$389,900 is required as the proposed personal representative lives out of state. (Cal. Rules of Court, rule 7.201(b); Super. Ct. San Luis Obispo County, rule 11.306)</i> 3. <i>An Amended Duties and Liabilities of Personal Representative form is needed. (Prob. Code § 8404.) The signature provided on the form filed on July 15, 2026 appears to be a typed signature. An original or</i>

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				<i>certified digital signature is needed. (Cal.Rules Ct., rule 2.257.)</i> 4. <i>Item 8 of the Petition requires the date of death of each deceased individual identified in the Petition. Specifically, the date of death of Catalina Ramirez and Larry H. Ramirez are not provided. Please refer to Superior Court, San Luis Obispo County, Local Rules, rule 11.303(e).</i> 5. <i>A Proof of Publication is needed. (Prob. Code §8120.)</i> 6. <i>Proposed Letters have not been submitted.</i> 7. <i>A proposed order is needed.</i>
26	26PR-0198	Estate of: Michael Durham	Petition Filed: 6/4/2026 INTESTATE	CONTINUED LIST. <i>The Petition is continued to February 9, 2027 at 9:00 am. in D-4. All additional items must be filed by January 12, 2027. The following is noted:</i> 1. <i>An Amended Petition was filed June 5, 2026. It is recommended this amendment be deemed a Supplement, as it appears the only change to the amended version is the addition of the address for Alisha S. Contreras in Item 8.</i> 2. <i>Item 3e(3) of the Petition is checked indicating that all heirs at law are adults and have waived bond. The mandatory Waiver of Bond form (DE-142) has not been executed by each of the heirs named and is not attached to the Petition. (Probate Code §8481(a)(2).)</i> 3. <i>Item 3g(1)(c) of the Petition is checked indicating that the proposed personal representative is a nominee of a person entitled to letters. A nomination was not located. It is unclear why this box is checked as Item 3g(1) does not apply if the decedent died intestate.</i>

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				4. <i>Item 5a of the Petition is incomplete. Please check either box (1) or (2) and either box (3) or (4) as one of each is required to be checked.</i> 5. <i>Item 5a(2)(b) of the Petition indicates that Decedent had a deceased spouse. Item 8 does not list the name and date of death of that spouse. Please refer to Superior Court, San Luis Obispo County, Local Rules, rule 11.303(e).</i> 6. <i>A Proof of Publication is needed. (Prob. Code §8120.)</i>
27	26PR-0204	Estate of: Jerome Usalis	Petition Filed: 6/9/2026 WILL	CONTINUED LIST. <i>The Petition is continued to October 13, 2026 at 9:01 am. in D-4. All additional items must be filed by September 15, 2026. The following is noted:</i> 1. <i>A Notice of Petition to Administer Estate (JC Form DE-121) was not filed per code. (Prob. Code § 8100.)</i> 2. <i>Item 6 of the Petition is incomplete. It appears from the information provided that the decedent was survived by a spouse but no issue.</i> 3. <i>Item 8 of the Petition does not provide the name of the trustee and the trust beneficiaries. (See Super. Ct. San Luis Obispo County, rule 11.303(c).) Without this information, the court cannot determine if notice has been correctly provided under Probate Code section 1208.</i> 4. <i>A Proof of Publication is needed. (Prob. Code §8120.)</i>
28	26PR-0206	Estate of: Deborah Van Dyke	Petition Filed: 6/11/2025 WILL	CONTINUED LIST. <i>The Petition is continued to November 3, 2026 at 9:01 am. in D-4. All additional items must be filed by October 6, 2026. The following is noted:</i> 1. <i>Item 3f(2) of the Petition indicates that a copy of the decedent's will is attached. There are no attachments</i>

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				<i>included as part of the Petition. A copy of the will is needed before a complete review of the Petition can be completed.</i> 2. <i>Item 5a(2)(b) indicates that Decedent had a deceased spouse. Item 8 does not list the name and date of death of that spouse. Please refer to Superior Court, San Luis Obispo County, Local Rules, rule 11.303(e).</i>
29	26PR-0209	Estate of: Kelly Black	Petition Filed: 6/12/2026 INTESTATE	CONTINUED LIST. <i>The Petition is continued to September 29, 2026 at 9:01 am. in D-4. All additional items must be filed by September 15, 2026. The following is noted:</i> 1. <i>The Notice of Petition to Administer Estate filed June 15, 2026 indicates that the hearing location is in Dept. 9 of this court. New notice is needed stating the correct hearing location, Dept. 4.</i> 2. <i>The Proof of Publication filed July 2, 2026 contains the same error as noted above. An Amended Proof of Publication is needed.</i>
31	26PR-0198	Estate of: Michael Durham	Competing Petition Filed: 7/6/2026 INTESTATE	CONTINUED LIST. <i>The Petition is continued to February 9, 2027 at 9:00 am. in D-4. All additional items must be filed by January 12, 2026. The following is noted:</i> 1. <i>The Petitioner is named as Alisha Contreras, but the Petition requests in item 2b that Alicia Contreras be appointed as personal representative. Based on the information provided, this appears to be a misspelling of the Petitioner's name. Confirmation is needed.</i> 2. <i>Item 5a of the Petition is incomplete. Please check either box (1) or (2) and either box (3) or (4) as one of each is required to be checked.</i>

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				3. <i>Item 5a(2)(b) of the Petition indicates that Decedent had a deceased spouse. Item 8 does not list the name and date of death of that spouse. Please refer to Superior Court, San Luis Obispo County, Local Rules, rule 11.303(e).</i> 4. <i>A Proof of Publication is needed. (Prob. Code §8120.)</i> 5. <i>Proposed Letters have not been submitted.</i> 6. <i>A proposed order is needed.</i>
32	26PR-0247	Estate of: Ronald Fragner	Petition Filed: 7/15/2026 INTESTATE	CONTINUED LIST. <i>The Petition is continued to December 15, 2026 at 9:01 am. in D-4. All additional items must be filed by November 17, 2026. The following is noted:</i> 1. <i>An Amended Duties and Liabilities of Personal Representative form is needed. (Prob. Code § 8404.) The signature provided on the form filed on July 15, 2026 appears to be a typed signature. An original or certified digital signature is needed. (Cal.Rules Ct., rule 2.257.)</i> 2. <i>A Proof of Publication is needed. (Prob. Code §8120.)</i>
<u>The following matters are PRE-APPROVED and no appearance is necessary unless an objection is made:</u>				
5	23PR-0290	Estate of: Steven Trester	Petition Filed 8/11/2025 - Final Distribution and Accounting [DUE 7/13/26]; cont'd 1/27/26	APPROVED LIST: <i>It is recommended the Petition be approved, subject to a declaration explaining how the statutory fees will be paid by the administrator as the estate does not contain any assets.</i>
13	25PR-0215	Estate of: Reuben Rodriguez	Petition Filed 7/3/2025 - INTESTATE [DUE	APPROVED LIST. <i>It is recommended the Petition be approved. It appears from the Fourth Supplement filed on July 20, 2026 that a bond of \$530,959.57 is needed.</i>

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			7/20/26]; cont'd 10/28/25, 4/28/26	
18	26PR-0029	Estate of: Melanie Myerscough	Petition Filed 1/28/26 - Spousal Property Petition	APPROVED LIST. <i>It is recommended the Petition be approved, subject to the following: A proposed order is needed.</i>
30	26PR-0187	Estate of: Pamela Gray	Petition Filed: 5/28/2026 [DUE 8/4/26] INTESTATE cont'd 7/21/26	APPROVED LIST.
<u>The following matters remain SET FOR HEARING and you should appear:</u>				
1	21PR-0361	Estate of: Carny Stuart-Williams	Petition Filed 1/31/25 - Final Distribution & Account [DUE 7/14/26]; cont'd 8/12/25 & 1/27/26	HEARING LIST: <i>Zoom or personal appearance is required. The following issues remain from the last two hearings:</i> 1. <i>Notice was not given in compliance with Probate Code section 11601 and California Rules of Court, rule 7.51(d). The notice provided on 12/29/25 provides notice to the minor only but did not provide a separate copy to the person with whom the minor resides. Either notice using Judicial Council form DE-120, or waivers of notice are acceptable.</i> 2. <i>The following issues remain on the Petition:</i> a. <i>Item 18 of the Petition is incomplete. Petitioner must state whether or not all debts have been paid. A supplement is needed.</i> b. <i>It is unclear how Petitioner calculated the Inventory Value in Item 22. There were four Inventory and Appraisals filed in this matter. It appears from the Corrected Reappraisal for</i>

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				<i>Sale Inventory and Appraisal filed on 6/6/22, that a 25% interest in the real property was valued at \$212,500. A Final Inventory and Appraisal was filed on 10/10/23, containing one bank account valued at \$207,790.86. The Petition does not contain any language regarding sale of the real property, nor does it contain a schedule of losses and gains. The file reflects a sale was approved on June 16, 2022 for a price of \$222,500. The ownership interested on the date of death is what is appraised and listed in the Inventory. The October 23, 2024 Final Inventory does not appear to be accurate. Clarification is needed as to the value of the estate before statutory fees can be calculated.</i> <i>c. A Summary of Account is attached to the petition at page 19 of 25. The Property on Hand at Beginning of Account requires clarification as lines 1a and 1c are \$0.00 but Inventory and Appraisals were filed showing the estate had assets. It is unclear at line 2 how an additional \$207,2790.86 was obtained and if this is in addition to the property value or monies obtained in a sale of the real property. In addition, line 3 indicates there were receipts of \$20.48 and line 5 indicates a gift of \$25 but these charges were not disclosed in Item 22 of the Petition.</i>

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				<i>Recalculation of the Summary of Account is needed.</i> <i>d. Clarification is needed on item 26. The probate referee would not normally be a party receiving a “preliminary distribution”. Was this a cost of administration? It is very unclear why it was listed as a preliminary distribution. Why would it not have been listed as a cost?</i> <i>e. If the real property was sold, a Seller’s Final Escrow Statement is needed, verifying the sales price and charges.</i> <i>f. Authority for the distribution is needed. The 12/29/25 declaration has been reviewed but does not address the concerns raised at the prior hearing. As previously explained, the Court cannot transfer the funds to the third-party special needs trust created by the Petitioner. These funds came from the deceased’s estate and not the Petitioner. The Court can pass the funds to the guardian of the estate, if one exists. In the alternative, the Court may be willing to place the funds in a blocked account. A distribution plan is needed as the Trust made by the Petitioner cannot direct how funds of another person’s estate will pass to a beneficiary.</i>

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				<i>g. Based on the above, the account provided is incomplete and contains an inaccurate starting balance.</i> <i>h. A proposed Order is needed.</i>
2	23PR-0038	Estate of: Connie Haueter	Petition Filed 8/13/25 - Establish Property Ownership and Transfer [DUE 7/2/26]; cont'd 2/17/26	<i>Still under review, please check back.</i>
3	23PR-0119	Estate of: Helen Whitehurst	Order to Show Cause re Status Report or Petition for Final Distribution [DUE 07/21/26]; cont'd 4/21/26	<i>HEARING LIST: Zoom or personal appearance is required.</i>
4	23PR-0173	In Re: Susanne Wilch Anderson Revocable Trust Dated February 14, 2019	Order to Show Cause Re: Bond	<i>HEARING LIST: Zoom or personal appearance is required.</i>
6	24PR-0092	Estate of: Will Hartmann	OSC re Inventory and Appraisal [DUE 7/21/26]; cont'd 1/27/26	<i>HEARING LIST: Zoom or personal appearance is required.</i>
7	24PR-0153	Estate of: Jo Mickles	Petition Filed 9/4/2025 [DUE 7/10/26] - Final	<i>Still under review, please check back.</i>

No.	Case Number	Case Name	Type of Matter	Probate Notes
			Distribution and Waiver of Accounting; cont'd 3/17/26	
8-9	24PR-0298	In Re: The McNamara Living Trust dated 9/29/82	(8) Petition Filed 8/19/2025 [DUE 5/12/26] - Second Account; cont'd 3/3/26 (9) Petition Filed 8/19/2025 [DUE 5/12/26] - First Account; cont'd 3/3/26	<i>Still under review, please check back.</i>
10	25PR-0089	Estate of: Kathleen Shank	Petition Filed 3/12/2025 - INTESTATE [DUE 8/18/26]; cont'd 5/6/25 & 2/3/26	HEARING LIST: Zoom or personal appearance is required. <i>The following issues remain from the last hearing:</i> <i>1. It appears amended notice is needed. Ryan Shank's actual address is unclear to the Court as he was served at a different address than was indicated in the Petition, at Item 8. In addition, this address appears to be for the San Luis Obispo County Jail and it is unclear whether or not this is a permanent address. Clarification is needed. The document filed on January 9, 2026 is unclear as to his address and what is being represented in the materials filed. A Declaration explaining the situation would be helpful.</i>

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				2. <i>It is unclear whether this Petition is filed testate or intestate as the caption and body, at Item 3f(1), do not match. If it is filed testate, a copy of Decedent's will must be attached. In addition, amended Publication will be needed to reflect a will.</i> 3. <i>Issues with the Petition:</i> a. <i>Item 2 is incomplete. It is unclear whether or not box a. should be checked and the name of the proposed personal representative must be stated in item b.</i> b. <i>Item 3c. must be completed.</i> c. <i>Petitioner has waived bond as noted in Item 3e(3). The mandatory Waiver of Bond form (DE-142) has not been executed by Ryan Shank, waiving bond for Aaron Shank. The bond waiver filed on January 30, 2026 indicates bond was waived by Ryan Shank for Ryan Shank. Ryan Shank is not the petitioner or proposed personal rep. See Probate Code §8481(a)(2). If a waiver cannot be obtained, bond of \$1,559,900 will be required.</i> d. <i>Item 5a is incomplete. Please check either box (3) or (4) and either box (7) or (8) as one of each is required to be checked.</i> e. <i>Item 8 appears to provide an address for Ryan Shank at the San Luis Obispo County Jail. Clarification is needed as to if this is a temporary address and if so, a permanent address is needed.</i>

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12	25PR-0193	Estate of: Kathleen Boyle	Order to Show Cause re: Proof of Deposit [DUE 7/21/2026]; cont'd 4/28/26	HEARING LIST: <i>Zoom or personal appearance is required. It is noted an ex parte hearing is scheduled for August 13, 2026, and these notes are subject to change after that hearing.</i>
14	25PR-0237	In Re: The Mark Ellard Adolphson 2006 Irrevocable Trust dated September 6, 2006	Petition Filed 7/29/2025 - Terminate Trust [DUE 7/14/26]; cont'd 1/27/26	<i>Still under review, please check back.</i>
15	26PR-0024	Estate of: Jacqueline Hobe	Petition Filed: [DUE: 07/21/2026] 03/30/2026 Will Contest Cont'd 7/7/26	<i>Still under review, please check back.</i>
16	26PR-0027	In Re: The Edith L. Smith Living Trust dated 6/11/2002	Petition Filed 1/29/26 – Distribute Trust Assets and Terminate the Trust	<i>Still under review, please check back.</i>
19	26PR-0032	In Re: The Kreps Family Trust of 11/9/1987	Petition Filed 2/02/26 - Petition for Instructions	<i>Still under review, please check back.</i>
20	26PR-0034	In Re: The Steven J William Trust dated 3/04/2020	Petition Filed 1/15/2026 – Compel Account and	<i>Still under review, please check back.</i>

No.	Case Number	Case Name	Type of Matter	Probate Notes
			Distribute Real Property	
21	26PR-0075	Estate of: Michael Johnson	Petition Filed: 03/11/2026 [DUE 7/21/26] INTESTATE cont'd 5/5/26	HEARING LIST: <i>Zoom or personal appearance is required. It appears from the Status Report filed July 23, 2026 that Petitioners intend to withdraw their Petition. If Petitioners would like to pursue their Petition, the following issues remain from the last hearing:</i> <i>1. Item 5a is incomplete. Please check either box (3) or (4) and either box (7) or (8) as one of each is required to be checked.</i> <i>2. The Court requires a completed Duties and Liabilities of Personal Representative form. (Prob. Code § 8404.)</i> <i>3. Points and Authorities are needed regarding requiring someone to serve without their consent. It appears under Probate Code §8461 subsection q that Petitioners as creditors have priority to serve. An Amended Petition appears necessary to substitute Petitioners as the proposed personal representative.</i> <i>4. Proposed letters have not been submitted.</i>
23	25PR-0358	Estate of: Saeed Baggash	Petition Filed 10/23/2025 - WILL [DUE 7/17/26]; cont'd 12/16/25, 5/19/26	HEARING LIST: <i>Zoom or personal appearance is required. The following issue remains from the last hearing: An Amended Proof of Publication is needed. (Prob. Code §8120.) The publication provided on May 15, 2026 does not substantially comply with Probate Code section 8100, in that it does not indicate the decedent's will is being offered to probate.</i>

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24	26PR-0024	Estate of: Jacqueline Hobe	Petition Filed 1/26/2026 - WILL [DUE 6/8/26]; cont'd 4/7/26	<i>Still under review, please check back.</i>

Subject to the rules below, attorneys and parties to a case may now contact the Probate Research Department using the following email: probate@slo.courts.ca.gov.

The following rules apply to use of the foregoing email address. An email that does not comply with the requirements below may not be reviewed.

1. Emails must be related only to a Probate Note (past or present).
 - a. The following exceptions apply: (1) A party or attorney has specifically received an email from the Court on an issue requiring response; or (2) the Court directed an email be sent to the Probate Research Department (Examples: Solicited email from a bench officer or a Court Attorney or information ordered to be provided via email by bench officer in Court).
2. **Emails must contain:**
 - a. **Subject Line: Hearing Date, Time, Department, Case Number and Case Name (Example: 10/1/19, 9:00, D99, 18PR0000, Estate of John Smith).**
 - b. **First Line of Email Body: Case Number, Case Name, and Description of the pleading on the calendar.**
 - c. **Reason for Request.**
 - d. **No Attachments.**
3. Further, email inquiries must conform to the following guidelines:
 - a. Questions must be from an attorney or party on the case.
 - b. The Court's response after the initial reply is limited to one email message per calendar matter, per hearing.

- c. The body of the email (Reason for Request under item 2.c.) is limited to (5) lines to each deficiency or issue.
 - d. Emails may only inquire into clarifications regarding the Probate Note. This includes clarifying language, code sections, court rules and policies related to the Probate Note. Disputes regarding requirements or issues raised in the Probate Note may not be made via email.
 - e. Emails advising the Court of possible oversights may be sent.
 - f. **Continuances may not be requested via the probate email address.**
4. This email procedure is NOT to be utilized for:
- a. Any requests for legal advice (including, but not limited to, how to clear the Probate Note), case management, and/or a recommendation for an attorney.
 - b. Confirmation of documents received by the Court. Please refer to the conformed copy of your filed document to confirm the Court's receipt. If you have not received a conformed copy of your document, please contact the Civil Clerk's Office.
 - c. Confirmation that documents have been reviewed.
5. Response Time. All correspondence will be addressed on a priority basis according to the hearing date. The Probate Research Department will make every effort to respond within two Court days of receipt of the email.